

23NWCV00598 23NWCV00598

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-09-24

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Case Number: 23NWCV00598 Hearing Date: September 24, 2026 Dept: P

Doe v. Los Angeles Unified School District, 23NWCV00598

This negligent supervision action was filed on February 23, 2023. Trial is scheduled to begin on October 5, 2026. Plaintiff Jane Doe, a minor by and through her Guardian ad Litem, Ms. Doe (Plaintiff) now applies ex parte to continue the trial date. Plaintiff argues that good cause exists because an expert Jon Sand, Ed.D. is unavailable for the current trial date. Plaintiff provides a Stipulation signed by Plaintiff and Defendant agreeing to a trial continuance to "January 11, 2027, or alternatively, anytime in January 2027 (depending on the Court's availability) and the Final Status Conference will be rescheduled to the week before the trial date." (Greenberg Decl., Exh. 10.)

Plaintiff's ex parte application to continue trial is GRANTED pursuant to the joint stipulation and California Rules of Court, rule 3.1332(c)(1) – "The unavailability of an essential lay or expert witness because of...other excusable circumstances." A trial continuance a date after January 11, 2027 is reasonable. The Court will confer with the parties to select new trial and FSC dates. Plaintiff's alternative request, to advance a Motion to Continue Trial is moot.

Moving party to give notice.